

2. This Act may be cited as the Education (Scotland) Act, 1930, and shall be construed as one with the Education (Scotland) Acts, 1872 to 1928. Citation and
construc-
tion.

CHAPTER 37.

An Act to make provision for the adoption of children in Scotland. [1st August 1930.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Upon an application in the prescribed manner by any person desirous of being authorised to adopt a child under the age of twenty-one years who has never been married, the Court may, subject to the provisions of this Act, make an order (in this Act referred to as “an adoption order”) authorising the applicant to adopt that child. Power to
make adop-
tion orders.

(2) A person so authorised to adopt the child and a child authorised to be adopted are in this Act referred to as an “adopter” and an “adopted child” respectively.

(3) Where an application for an adoption order is made by two spouses jointly, the Court may make the order authorising the two spouses jointly to adopt, but save as aforesaid no adoption order shall be made authorising more than one person to adopt a child.

2.—(1) An adoption order shall not be made in any case where— Restrictions
on making
adoption
orders.

(a) the applicant is, or in the case of a joint application both applicants are, under the age of twenty-five years; or

- (b) the applicant is, or in the case of a joint application both applicants are, less than twenty-one years older than the child in respect of whom the application is made :

Provided that, where the applicant or one or other of the joint applicants and the child are within the prohibited degrees of consanguinity, it shall be lawful for the Court, if it thinks fit, to make the order notwithstanding that the applicant is less than twenty-one years older than the child.

(2) An adoption order shall not be made in any case where the sole applicant is a male and the child in respect of whom the application is made is a female unless the Court is satisfied that there are special circumstances which justify as an exceptional measure the making of an adoption order.

(3) An adoption order shall not be made except with the consent of every person or body who is a parent or guardian of the child in respect of whom the application is made or who has the actual custody of the child or who is liable to contribute to the support of the child and except with the consent of the child if a minor :

Provided that the Court may dispense with any consent required by this subsection if satisfied that the person whose consent is to be dispensed with has neglected or treated with cruelty the child or has abandoned or deserted the child or cannot be found or is incapable of giving such consent or, being a person liable to contribute to the support of the child, either has persistently neglected or refused to contribute to such support or is a person whose consent ought, in the opinion of the Court and in all the circumstances of the case, to be dispensed with.

(4) An adoption order shall not be made upon the application of one of two spouses without the consent of the other of them :

Provided that the Court may dispense with any consent required by this subsection if satisfied that the person whose consent is to be dispensed with cannot

be found or is incapable of giving such consent or that the spouses have separated and are living apart and that the separation is likely to be permanent.

(5) An adoption order shall not be made in favour of any applicant who is not resident and domiciled in Scotland or in respect of any child who is not a British subject and so resident.

3. The Court before making an adoption order shall be satisfied—

- (a) that every person whose consent is necessary under this Act and whose consent is not dispensed with has consented to and understands the nature and effect of the adoption order for which application is made, and in particular in the case of any parent understands that the effect of the adoption order will be permanently to deprive him or her of his or her parental rights; and
- (b) that the order if made will be for the welfare of the child, due consideration being for this purpose given to the wishes of the child, having regard to the age and understanding of the child; and
- (c) that the applicant has not received or agreed to receive, and that no person has made or given, or agreed to make or give to the applicant, any payment or other reward in consideration of the adoption except such as the Court may sanction.

Matters with respect to which Court to be satisfied.

4. The Court in an adoption order may impose such terms and conditions as the Court may think fit and in particular may require the adopter by bond or otherwise to make for the adopted child such provision (if any) as in the opinion of the Court is just and expedient.

Terms and conditions of order.

5.—(1) Upon an adoption order being made, all rights, duties, obligations and liabilities of the parent or parents, guardian or guardians of the adopted child, in relation to the future custody, maintenance and education of the adopted child, including all rights to appoint a

Effect of adoption order.

guardian shall be extinguished, and all such rights, duties, obligations and liabilities shall vest in and be exercisable by and enforceable against the adopter as though the adopted child was a child born to the adopter in lawful wedlock, and in respect of the same matters and in respect of the liability of a child to maintain its parents the adopted child shall stand to the adopter exclusively in the position of a child born to the adopter in lawful wedlock :

Provided that, in any case where two spouses are the adopters, such spouses shall in respect of the matters aforesaid and for the purpose of the jurisdiction of any court to make orders as to the custody and maintenance of and right of access to children stand to each other and to the adopted child in the same relation as they would have stood if they had been the lawful father and mother of the adopted child, and the adopted child shall stand to them respectively in the same relation as a child would have stood to a lawful father and mother respectively.

15 & 16
Geo. 5. c. 84.

(2) An adopted child if adopted either by two spouses jointly or by one of two spouses in the lifetime of the other shall, for the purposes of the Widows', Orphans and Old Age Contributory Pensions Acts, 1925 and 1929, and Workmen's Compensation Act, 1925, be treated as being the child of those spouses and as not being the child of any other person :

Provided that this subsection shall not apply in the case of a child in respect of whom an additional allowance or orphan's pension was payable under the said Acts at the date of his adoption.

(3) An adoption order shall not deprive the adopted child of any legal rights competent to him in the estate of his parents or of any right to or interest in property to which, but for the order, the child would have been entitled under any intestacy or disposition, whether occurring or made before or after the making of the adoption order, or confer on the adopted child any right to or interest in property as a child of the adopter, and the expressions "child," "children," and "issue" where used in relation to any person in any disposition shall not, unless the contrary intention appears, include

an adopted child or children of such person or the issue of an adopted child of such person.

(4) Where an adopted child or the spouse or issue of an adopted child takes any interest in heritable or moveable property under a disposition by the adopter, or where an adopter takes any interest in heritable or moveable property under a disposition by an adopted child or the spouse or issue of an adopted child, any succession, legacy or other duty which becomes leviable in respect thereof shall be payable at the same rate as if the adopted child had been a child born to the adopter in lawful wedlock.

(5) For the purposes of this section "disposition" means a deed, instrument or writing whether inter vivos or mortis causa whereby property is conveyed or under which a succession arises.

(6) For the purposes of the enactments relating to friendly societies, collecting societies and industrial assurance companies, which enable such societies and companies to insure money to be paid for funeral expenses, and which restrict the persons to whom money may be paid on the death of a child under the age of ten, the adopter shall be deemed to be the parent of the child; and where before the adoption order was made any such insurance had been effected by the natural parent of the child, the rights and liabilities under the policy shall by virtue of the adoption order be transferred to the adopter, and the adopter shall, for the purposes of the said enactments, be treated as the person who took out the policy.

6.—(1) Upon any application for an adoption order, the Court may postpone the determination of the application and may make an interim order (which shall not be an adoption order for the purposes of this Act) giving the custody of the child to the applicant for a period not exceeding two years by way of a probationary period upon such terms as regards provision for the maintenance and education and supervision of the welfare of the child and otherwise as the Court may think fit.

Power to
make
interim
orders.

(2) All such consents as are required to an adoption order shall be necessary to an interim order but subject to a like power on the part of the Court to dispense with any such consent.

Power to
make subse-
quent order
in respect of
child already
subject to
an order.

7. An adoption order or an interim order may be made in respect of a child under the age of twenty-one years who has already been the subject of an adoption order, and, upon any application for such further adoption order, the adopter or adopters under the adoption order last previously made shall, if living, be deemed to be the parent or parents of the child for all the purposes of this Act.

Jurisdiction
and proce-
dure.

8.—(1) The Court having jurisdiction to make adoption orders under this Act shall be the Court of Session, or the sheriff court within whose jurisdiction either the applicant or the child resides at the date of the application for the adoption order.

(2) Provision shall be made by Act of Sederunt with regard to any matter to be prescribed under this Act to the manner in which applications to the Court are to be made and generally with regard to all matters of procedure and incidental matters arising out of this Act and for carrying this Act into effect.

Such Act of Sederunt may provide for applications for adoption orders being heard and determined otherwise than in open Court.

(3) For the purpose of any application under this Act and subject to any Act of Sederunt under this section, the Court shall appoint some person to act as curator ad litem of the child upon the hearing of the application with the duty of safeguarding the interests of the child before the Court, and where the person so appointed is an officer or servant of a local authority and appointed as such the Court may authorise the authority to incur any necessary expenditure, and may direct out of which rate such expenditure is to be defrayed, but nothing in this section shall be deemed to authorise the Court to appoint an officer or servant of a local authority to act as curator ad litem of a child except with the consent of that authority.

Restriction
on pay-
ments.

9. It shall not be lawful for any adopter or for any parent or guardian except with the sanction of the Court to receive any payment or other reward in consideration of the adoption of any child under this Act or for any person to make or give or agree to make or

give to any adopter or to any parent or guardian any such payment or reward.

10. Where at the date of the commencement of this Act any child under the age of twenty-one years is in the custody of, and being brought up, maintained and educated by any person or two spouses jointly as his, her or their own child under any *de facto* adoption, and has for a period of not less than two years before such commencement been in such custody and been so brought up, maintained and educated, the Court may, upon the application of such person or spouses, and notwithstanding that the applicant is a male and the child a female, make an adoption order authorising him, her or them to adopt the child without requiring the consent of any parent or guardian of the child to be obtained, upon being satisfied that in all the circumstances of the case it is just and equitable and for the welfare of the child that no such consent should be required and that an adoption order should be made.

Provisions
as to exist-
ing *de facto*
adoptions.

11.—(1) The Registrar-General for Scotland shall establish and maintain at the General Registry Office a register to be called the Adopted Children Register, in which shall be made such entries as may be directed to be made therein by adoption orders, but no other entries.

Adopted
children
register.

(2) Every adoption order shall contain a direction to the Registrar-General to make in the Adopted Children Register an entry recording the adoption in the form set out in the Schedule hereto.

(3) There shall be produced with every application for an adoption order in respect of a child whose birth has been registered under the Registration of Births, Deaths, and Marriages (Scotland) Act, 1854, an extract of the entry of the birth, and the adoption order in any such case shall direct the Registrar-General to cause any entry in the register of births relating to such child to be marked with the word “adopted.”

17 & 18 Vict.
c. 80.

(4) Where, in any application for an adoption order, the date of the child's birth is proved to the satisfaction of the Court, whether by production of an extract of the entry of the birth in the register of births or otherwise,

the adoption order shall direct the Registrar-General to include in the entry in the Adopted Children Register recording the adoption the date so proved in the manner indicated in the Schedule hereto.

(5) The clerk of the Court shall cause every adoption order to be communicated to the Registrar-General, and upon receipt of such communication the Registrar-General, shall cause compliance to be made with the directions contained in such order in regard both to marking any entry in the Register of Births with the word "Adopted" and in regard to making the appropriate entry in the Adopted Children Register.

(6) An extract of any entry in the Adopted Children Register if purporting to be sealed or stamped with the seal of the General Registry Office shall, without any further or other proof of such entry—

- (a) where the entry does not contain any record of the date of the birth of the adopted child be received as evidence of the adoption to which the same relates; and
- (b) where the entry contains a record of the date of the birth of the adopted child be received not only as evidence of the adoption to which the same relates but also as evidence of the date of the birth of the adopted child to which the same relates in all respects as though the same were a certified copy of an entry in the Register of Births.

(7) The Registrar-General shall cause an index of the Adopted Children Register to be made and kept in the General Registry Office, and every person shall be entitled to search such index and to have an extract of any entry in the Adopted Children Register in all respects upon, and subject to the same terms, conditions and regulations as to payment of fees and otherwise as are applicable under the Registration of Births, Deaths and Marriages (Scotland) Act, 1854, and the Acts amending that Act, in respect of searches in other indexes kept in the General Registry Office, and in respect of the supply from such office of extracts of entries in the Registers of Births, Deaths and Marriages.

(8) The Registrar-General shall, in addition to the Adopted Children Register and the index thereof, keep such other registers and books, and make such entries therein as may be necessary, to record and make traceable the connection between any entry in the register of births which has been marked "Adopted" pursuant to this Act and any corresponding entry in the Adopted Children Register, but such additional registers and books shall not be nor shall any index thereof be open to public inspection or search, nor, except under an order of the Court of Session or a sheriff, shall the Registrar-General furnish any information contained in or any copy or extract from any such registers or books to any person other than an adopted child who has attained the age of seventeen years and to whom such information, copy, or extract relates.

(9) The provisions of the Registration of Births, Deaths, and Marriages (Scotland) Act, 1854, as amended by any subsequent enactment with regard to the registration of names given in baptism, or without baptism, after registration of birth, and with regard to the correction of erroneous entries, shall apply to the Adopted Children Register, and to registration therein in like manner as they apply to any register of births and to registration therein.

(10) Regulations made under the Registration of Births, Deaths and Marriages (Scotland) Act, 1854, and the Acts amending that Act may make provision as to the duties to be performed by Registrars of Births, Deaths and Marriages in the execution of this Act.

12.—(1) This Act may be cited as the Adoption of Children (Scotland) Act, 1930.

Short title,
commence-
ment and
extent.

(2) This Act shall come into operation on the first day of October nineteen hundred and thirty.

(3) This Act shall apply only to Scotland.

SCHEDULE

Section 11.

No. of Entry.	1. Name and Surname of Adopted Child.	2. Date of Birth, where Adoption Order directs entry of date of Birth.	3. Sex.	4. Name and Surname, Occupation and Address of Adopter or Adopters.	5. Date of Adoption Order and Description of Court by which made.	6. Date of Registration and Signature of Registrar-General.